

NOTICE OF PUBLIC HEARING BEFORE THE PLANNING COMMISSION

The Provo City Planning Commission will hold a public hearing on April 22, 2026 at 6:00 PM. Located at: Council Chambers 445 West Center Street. The items listed below will be discussed, and anyone interested is invited to participate and provide comment. Hearings can be viewed live and on-demand at: YouTube youtube.com/user/ProvoChannel17 and on Facebook facebook.com/provochannel17.

NOTICE OF PUBLIC MEETING BEFORE PROVO MUNICIPAL COUNCIL

On Tuesday, **May 12, 2026**, at 5:30 PM. the Provo Municipal Council will consider the items noted below with a star (*). Items noted on the agendas with a star require legislative action by the Municipal Council. Council agendas can be viewed at the Provo City Council web site on the Thursday prior to the Council meeting at <http://agendas.provo.gov>. For more information, call (801) 852-6120.

Unmarked items are administrative and require the approval only of the Planning Commission. Decisions on the unmarked items may be appealed to the Board of Adjustment by making application by 6:00 PM. **within 14 days of the Planning Commission decision.**

Study Session

1. Staff Review of the draft zoning ordinance – Aaron Aardmore

Public Hearings

- *ITEM 1** Natalie & Douglas Langford request an Ordinance Text Amendment to Provo City Code 14.22.020 to add a caretaker dwelling as a permitted accessory use in the CG (General Commercial) Zone. Citywide Application. Aaron Aardmore (801) 852-6404 aardmore@provo.gov PLOTA20260119
- ITEM 2** Continued staff review of the draft zoning ordinance. Planning Commission is not being asked to forward a recommendation to the City Council at this time. Public comment will be taken when this item is before the Planning Commission for a recommendation.

Preceding the public hearing, there will be a Study Session at 5:00 PM. at the Provo Peak Conference Room, 445 W Center Street. The Study Session is open to the public; however, formal presentation of items, public comment and actions will be reserved for the public hearing at 6:00 PM.

To send public comments to Planning Commission members, email them at dspublichearings@provo.gov. Please submit public comment emails before 3:00 PM the day of the hearing. Additional information can be found at provo.gov/publiccomments.

Copies of the agenda materials, public hearing procedure, and staff reports are available the week of the hearing at a reasonable cost at 445 W Center Street, Suite 200, Provo between the hours of 7:00 AM. and 6:00 PM., Monday through Thursday. Agendas and staff reports are also generally available on the Provo City Development Services web site the week of the meeting at provo.gov/agendacenter.

Provo City will make reasonable accommodations for all citizens interested in participating in this meeting. If assistance is needed to allow participation at this meeting, please call the Development Services Department at (801) 852-6400 before 12:00 PM. the day before the meeting to make arrangements.

By order of the Provo City Planning Commission
Planning Secretary, (801) 852-6424



***ITEM 1** Natalie & Douglas Langford request an Ordinance Text Amendment to Provo City Code 14.22.020 to add a caretaker dwelling as a permitted accessory use in the CG (General Commercial) Zone. Citywide Application. Aaron Ardmore (801) 852-6404 aardmore@provo.gov PLOTA20260119

APPLICANT:	Natalie and Douglas Langford
PROPERTY OWNER:	Not Applicable – Citywide Amendment
PARCEL ID:	Not Applicable – Citywide Amendment
ACREAGE:	Not Applicable – Citywide Amendment
CURRENT LEGAL USE:	Not Applicable – Citywide Amendment
GENERAL PLAN DESIGNATION:	Not Applicable – Citywide Amendment
CURRENT ZONE:	Not Applicable – Citywide Amendment
APPLICATION TYPE:	Legislative Decision – Planning Commission will make a recommendation to the City Council.

NEIGHBORHOOD FEEDBACK

Because this is a citywide amendment, there has been no neighborhood district discussion of this proposal. Staff have not received any public feedback at the time of this report.

PROJECT SUMMARY

The applicants have an interest in property within the CG Zone and are proposing a code amendment to allow for a caretaker dwelling to be established as an accessory use, subject to existing code standards for caretaker dwellings found in Provo City Code 14.34.220. While staff assisted the applicant with what amendment would be needed and how it could look, the applicant has provided some additional information and justification for the request, these are attached to the end of this report.

STAFF ANALYSIS

Before recommending an amendment, the Commission must find that the amendment serves the public interest and aligns with the General Plan, based on consideration of the following:

(a) Public purpose for the amendment in question;

Applicant Response: “Overall proposal would improve neighborhood safety, cleanliness, and property value without any burdens on city services.”

Staff Response: Staff recognize increased safety, cleanliness and property value as legitimate public purposes.

FINDING: Complies.

(b) Confirmation that the public purpose is best served by the amendment in question;

Applicant Response: “The caretaker dwelling will provide clear benefits to the city and surrounding community. Not only will a caretaker dwelling enhance overnight security, but it will also discourage loitering, encampment, and illicit drug use. It will help ensure cleanliness and provide enhanced safety for local residents.”

Staff Response: Allowing a caretaker dwelling in the CG zones saves the city from a potential loss of commercial zoning with possible rezone requests, while allowing for the safety and security that a full-time tenant can provide.

FINDING: Complies.

(c) Compatibility of the proposed amendment with General Plan policies, goals, and objectives;

Applicant Response: “This caretaker dwelling will further the vision of Provo City by ensuring a clean, well-monitored and safe environment.”

Staff Response: The goals identified by the applicant are consistent with the following General Plan goals:

- GP chapter 3, goal 4a: to facilitate an “efficient built environment and promoting the health and safety of its residents.”
- GP chapter 4, goal 1b: “consider revising regulations to encourage development of a mix of housing types.”
- GP chapter 5, goal 1: “employ innovative approaches to promote local business and create community.”
- GP chapter 7, goal 4: “promote a high quality of life for Provo residents...”

FINDING: Complies.

(d) Consistency of the proposed amendment with the General Plan’s “timing and sequencing” provisions on changes of use, insofar as they are articulated;

Applicant Response: No response (not applicable).

Staff Response: There are no timing and sequencing provisions related to this request.

FINDING: Complies.

(e) Potential of the proposed amendment to hinder or obstruct attainment of the General Plan’s articulated policies;

Applicant Response: “The proposed caretaker dwelling will have a negligible impact on city infrastructure and services while providing significant improvements to neighborhood cleanliness and security.”

Staff Response: By allowing the caretaker dwelling rather than rezoning to allow a residential use, the General Plan goals and policies could remain intact and would not create much additional demand for city services. There are approximately 245 acres of CG Zone currently throughout the city. While it may be difficult to know how many of those may take advantage of a caretaker dwelling, this use is already permitted in the A1, PF, FI, M1, M2, CM, MP, and PIC zones. The percentage of properties that have established caretaker dwellings in these zones is under 5%.

FINDING: Complies.

(f) Adverse impacts on adjacent land owners; and

Applicant Response: “This caretaker dwelling will enhance neighborhood cleanliness, safety, and property value without any additional burdens on city services.”

Staff Response: If passed, it is more likely that the caretaker dwelling would have a positive impact on adjacent land owners by ensuring safety and cleanliness when businesses are closed.

FINDING: Complies.

(g) Verification of correctness in the original zoning or General Plan for the area in question.

Applicant Response: No response (not applicable).

Staff Response: Not applicable.

FINDING: Complies.

(h) In cases where a conflict arises between the General Plan Map and General Plan Policies, precedence shall be given to the Plan Policies.

Applicant Response: Applicant has responded to policies (see attached).

Staff Response: This request would not impact the General Plan map.

FINDING: Complies.

APPLICABLE ZONING CODES

Provo City Code 14.22 (CG Zone): <https://provo.municipal.codes/Code/14.22>

Provo City Code 14.34.220 (Caretaker Dwellings as an Accessory Use):
<https://provo.municipal.codes/Code/14.34.220>

In zones that specifically allow caretaker dwellings as permitted accessory use, such dwellings may be established only if such dwellings:

- (1) are accessory to a functioning principal use, with not more than one caretaker dwelling per lot or principal use;
- (2) are located on the same property as the principal use;
- (3) are occupied by only one (1) family;
- (4) contain only one (1) kitchen;
- (5) have no associated accessory living space;
- (6) are accessory in size to the main use and do not to exceed one thousand two hundred (1200) square feet of floor area;
- (7) are designed as a part of and in harmony with the architecture of the main building(s) on the subject property;
- (8) are not a manufactured dwelling unit; and
- (9) are occupied or rented only by an employee or subcontractor of the legal entity which owns the principal use being cared for (with or without family members).
The caretaker shall be employed at least fifty percent (50%) of the time as an employee or subcontractor of the legal entity which occupies main buildings on the subject property. Any person occupying a caretaker dwelling shall submit evidence of compliance with this Section upon request of the City.

POSSIBLE MOTIONS AND FINDINGS

The Planning Commission may make any of the following findings:

1. **Recommend Approval:** The proposal is consistent with the General Plan. *“The Planning Commission recommends approval of the proposed ordinance text amendment of Provo City Code 14.22.020 to the City Council”*
2. **Recommend Denial:** The proposal is not consistent with the General Plan. *“The Planning Commission recommends denial of the proposed ordinance text amendment of Provo City Code 14.22.020 to the City Council”*
3. **Continue:** New information presented at the public hearing or additional study needs to be done. *“The Planning Commission continues this item to a future hearing due to [state reasons]”*

ATTACHMENTS

1. Proposed Ordinance Text Amendment
2. Applicant Analysis of Impacts of Amendment
3. Applicant Ordinance Amendment Written Description
4. Applicant Justification Statement

ATTACHMENT 1 – PROPOSED ORDINANCE TEXT AMENDMENT

14.22.020 Permitted Uses.

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(5) *Permitted Accessory Uses.* Accessory uses and structures are permitted in the CG zone provided they are incidental to, and do not substantially alter, the character of the permitted principal use or structure. Such permitted uses and structures include, but are not limited to, the following:

(a) Accessory buildings such as garages, carports, equipment storage buildings and supply storage buildings which are customarily used in conjunction with and incidental to a principal use or structure permitted in the CG zone; and

(b) Storage of materials used for construction of buildings, including the contractor's temporary office provided that such use be located on the building site or immediately adjacent thereto, and provided further, that such use shall be permitted only during the construction period and thirty (30) days thereafter.

(c) A caretaker dwelling, subject to Provo City Code 14.34.220.

ATTACHMENT 2 – APPLICANT ANALYSIS OF IMPACTS OF AMENDMENT

This application proposes the approval of a caretaker dwelling within a building in a general commercial zone in Provo. This amendment is intended to improve property security, sanitation, and oversight while supporting the continued operation of a medical service. This caretaker dwelling will enhance neighborhood cleanliness, safety, and property value without any additional burdens on city services.

ATTACHMENT 3 – APPLICANT ORDINANCE AMENDMENT WRITTEN DESCRIPTION

The beauty of the Grandview community will be strengthened by this proposed caretaker dwelling. The caretaker dwelling will provide clear benefits to the city and surrounding community. Not only will a caretaker dwelling enhance overnight security, but it will also discourage loitering, encampment, and illicit drug use. It will help ensure cleanliness and provide enhanced safety for local residents. This caretaker dwelling will further the vision of Provo City by ensuring a clean, well-monitored and safe environment.

ATTACHMENT 4 – APPLICANT JUSTIFICATION STATEMENT

The proposed caretaker dwelling will have a negligible impact on city infrastructure and services while providing significant improvements to neighborhood cleanliness and security.

The unit will function as a residential dwelling for a caretaker who would be responsible for monitoring and maintaining the property. The remainder of the building houses a neurology medical office.

Over the past several years the property has experienced:

- Human waste in the patient parking lot
- Individuals camping behind the building
- Garbage accumulation
- Drug paraphernalia left on the premises
- Unauthorized individuals entering the property

These conditions create sanitary and safety concerns particularly given the vulnerable nature of patients in the clinic. Having an on-site caretaker would allow for:

- Immediate monitoring of suspicious activity
- Faster response to trespassing
- Rapid resolution of sanitation hazards
- Improved coordination with local law enforcement when necessary
- Regular inspection of the property exterior

From an infrastructure standpoint

- No meaningful increase in traffic is expected
- Parking will be accommodated with existing on-site parking
- No additional utility infrastructure is required.

Overall proposal would improve neighborhood safety, cleanliness, and property value without any burdens on city services.